

Combating discrimination in education
INCORPORATES MALTA'S REPLY

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

**GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE
APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST
DISCRIMINATION IN EDUCATION**

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: MALTA

Organization or entity responsible for the preparation of the report: Ministry for Education and Employment

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☒ Yes

☐ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

Is the Convention directly applicable in your country's domestic law following its ratification?

MT reply:

The 1960 Convention against discrimination in education has been ratified by Malta.

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☐ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☒ Other:

MT reply:

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

With regard to Sustainable Development Goal (SDG) target 4.5 (4), the policy followed by the board of exemption of fees in state education institutions based on local legislation does not discriminate.

Furthermore, at compulsory education level. Malta's curricula and learning outcomes have always been designed with a number of basic concepts in mind. In Malta's education system, inclusion has always been one of the top-most priority. There have been a number of steps in this regard starting from the National Curriculum Framework (2012) structure, learning outcomes framework and the learning outcomes which are being rolled out in Malta's education system.

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

MT reply:

At compulsory education level:

Access to compulsory education is regulated by the Education Act (Chapter 327). This stipulates that every Maltese citizen should have direct access to a quality education up to the age of 16 irrespective of gender, age, disability, sexual orientation, ethnicity, socio-economic background and religion. The Ministry for Education and Employment (MEDE) holds the Framework for the Education Strategy for Malta 2014-2024 (2014) from which emanates the National Inclusion Policy and respective Framework that clearly outlines how schools should include all learners and work to eliminate barriers to promote a quality and inclusive education for all.

In December 2019, the Parliament of Malta also enacted a new Education Act which is to come in force in the near future which not only obliges the State to provide compulsory education to Maltese citizens but to whoever resides in Malta.

At post-compulsory education level:

At post-compulsory education level, the law binds the Malta College of Arts, Science and Technology (MCAST) with the duty to provide quality education to all learners irrespective of their age, gender, sex, ability, economic status, nationality, ethnicity, religion or faith, disability and/or political affiliations.

It also binds MCAST to ensure the implementation of the principles of inclusive education by providing an equitable access to all persons in full respect of any diversity.

Other measures include the establishment of the MCAST Integration Unit (2018); provision of lectures at MCAST for the "I Belong Programme" in collaboration with the Human Rights directorate; organisation of projects and events during the academic year specifically targeting the prevention of discrimination; constant collaboration with non-government organisations (NGOs); MCAST operates within the constitutional and Education Act framework and other legislative measures which prohibit any form of discrimination. The Individual and Social Responsibility (ISR) lessons at MCAST which are delivered to all students following programmes at Malta Qualifications Framework (MQF) levels 1, 2 and 3 tackles the issue of discrimination and justice. The MCAST Corporate and Social Responsibility (CSR) experiences exposes students to the reality of social justice; Furthermore, direct participation in MCAST activities such as the 15 days of activism against domestic violence makes the students aware of domestic violence in our society. The

MCAST outreach and student affairs department organises activities to create awareness on occurrences of discrimination and instil a sense of respect, fairness and justice.

MCAST seeks to prohibit any form of discrimination through its regulations.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☒ Other:

MT reply:

Third country nationals are sometimes supported through exemption of fees depending about the case.

At compulsory education level:

The “Learning Outcomes Framework” designed for all subjects contains level descriptors for each subject to facilitate differentiation of content, process and product to provide learners full access to curriculum.

The implementation of ‘*My Journey: achieving through different paths*’ to provide different educational/learning pathways to different students with diverse learning aptitudes and abilities and skills. The reform, both comprehensive and inclusive, was introduced in the first year of secondary schooling (year 9, age 13) during the school year 2019-20. Hence as of September 2019, through the *My Journey* reform, secondary school students are allowed to choose from academic, vocational and/or applied subjects in addition to the core curriculum. A national careers web portal⁶ and events such as I Choose⁷ were developed. Students and parents/guardians are guided through the subject choosing process and have access to all information on the different subject options through the 3 routes.

Lower secondary learners have an opportunity to select options/subjects (general/academic, vocational and applied) alongside their compulsory lessons. The following nine vocational subjects and their corresponding applied ones are available:

- agribusiness, engineering technology;
- health and social care;
- hospitality;
- information technology;
- media literacy;
- hairdressing and beauty;
- retail;
- textiles and fashion.

All these subjects lead up to EQF/MQF level 3 qualification, with no dead-ends. The rationale is that vocational education supports the educational engagement of learners who may struggle with the learning pedagogy of mainstream academic subjects. The progress of learners in the vocational subjects is not assessed through formal examinations but through ongoing assessment by the subject teacher, verified internally by a second subject teacher,

⁶ <http://exploremoreproject.eu/en/>

⁷ <https://education.gov.mt/en/IChoose/Pages/I%20Choose.aspx>

and evaluated by an external verifier from the national assessment board. School-based information sessions were organised for learners, their parents and teaching staff. Teachers already in service who opted to teach the new vocational and applied subjects attended ongoing professional development sessions in the learning content, vocational pedagogy and assessment procedure. Besides the investment in human resources, the ministry and the ESF jointly financed 78 vocational spaces, equipping them with the latest material and teaching resources.

The *My Journey* reform involves moving from a 'one size fits all' system to a more inclusive and equitable programme. The aim is to respond to different education needs and give parity of esteem to general, vocational and applied subjects. The new system builds on the current one but ambitiously moves forward in democratising academic, vocational and applied learning for all students within a framework of parity of esteem. It retains key competences and sustains traditional academic learning programmes. Complementarily, vocational subjects and applied learning programmes leading up to MQF Level 3, are also made available to all students and are provided within the same school and in all secondary schools. Applied learning is comparable and equivalent to the academic and vocational education and accredited up to MQF Level 3. Following compulsory education, students may opt to continue their studies at the University of Malta (UoM), Malta College of Arts, Science and Technology (MCAST), Institute of Tourism Studies (ITS) or another higher education institution of their choice.

The introduction of equitable learning programmes enables more quality time for in-depth learning whilst increasing learning opportunities, eliminating dead ends and easing labour market entry. *My Journey* seeks to promote increased links between education and industry. Close cooperation between schools and workplaces assures the currency of subject learning outcomes (SLOs), provides real-life work environments thus warranting the assimilation of the aims of work life, establishes fruitful relationships with companies and facilitates the learning of entrepreneurship competencies. These processes contribute to their development of expertise in the occupation that cannot be simulated in a school-based environment. By offering the possibility to choose vocational and/or applied paths at the age of 12, the reform is implemented in a manner which avoids the possibility of later exclusion. In order to avoid that students may leave compulsory education not being well equipped with those key competences that could allow later re-skilling and up-skilling, the *My Journey* reform will also include new learning programmes in the core subjects (Mathematics, English, Maltese and Science) targeted at students following applied programmes. In this regard, a new certification is being introduced. The Secondary Education Applied Certificate (SEAC) run by the MATSEC board will certify 9 applied option subjects and 5 core subjects.

'A Policy on Inclusive Education in Schools – Route to Quality Inclusion' (2019) outlines the holistic vision of the broad view of inclusive education.

The implementation of Scheme 9 supports learners from difficult socio-economic backgrounds.

At post-compulsory education and tertiary level:

Establishing the Malta College of Arts, Science and Technology (MCAST) Inclusive Education unit and the MCAST Student Integration unit.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁸

MT reply:

The following is a list of measures taken:

Third country nationals supported through exemption of fees.

At compulsory education level:

The provision of inclusive, specialised educational services and psychosocial services to address learners' physical, emotional, psychological, social and developmental needs. The National School Support Services within the Ministry for Education and Employment (MEDE) also offers assistance to learners from low social-economic backgrounds through a targeted budgetary measure- Scheme 9.

At post-compulsory education level:

The Inclusive Education Unit (IEU) within the Malta College of Arts, Science and Technology (MCAST) aims at creating an inclusive environment where learners are provided with the educational support that allows them to develop their full potential. Learners with any particular needs (e.g., dyslexia, autism, visual/hearing impairment), may require specific provisions which enable them to demonstrate their real abilities. The IEU ensures that reasonable arrangements are in place for students requesting support. All support is optional and could be reduced or discontinued upon a responsible request. Information provided remains strictly confidential and lecturers are informed upon learners' consent.

The MCAST Integration Unit aims at welcoming, integrating and accompanying students throughout their academic journey at MCAST. Diversity is celebrated during the academic year through activities, with the participation of all international students hailing from more than seventy nationalities. We seek to encourage students to create awareness of the existence of integration, to participate in this reality and as a result benefit from the funds of knowledge derived through the experience created within a multinational environment. To achieve this the College engages in the support of staff members through professional development. It also seeks collaboration with NGOs working in the field of integration whilst offering continuous support to individuals or groups of students facing the challenges of integration within the College.

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|---|
| ☒ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| ☒ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Adapting curricula and methods |
| | ☒ Providing language classes to newcomers (e.g. refugees) |

- ☒ Training teachers on inclusive education
- ☒ Ensuring gender parity in science, , engineering and mathematics (STEM) and technical and vocational training (TVET)
- ☒ Providing re-entry programmes for young mothers
- ☒ Eliminating all barriers for pregnant girls or young mothers in education
- ☒ Eliminating administrative barriers to education⁹
- ☒ Providing flexible learning pathways
- ☒ Valuing diversity in schools
- ☒ Combatting stereotyping and stigmatisation
- ☐ Other:

MT reply:

Providing exemption of fees for post-secondary courses for people (Maltese and foreigners) encountering financial difficulties where a local fee is to be paid.

Furthermore, students' maintenance grants are provided by the Government of Malta for students in higher education. The students' maintenance grants' scheme operates under a set of regulations and the respective Legal Notice determining eligibility.

Additionally, scholarships are also offered to higher education students.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

MT reply:

At compulsory education level:

The career guidance services under the remit of National School Support Services within the Ministry for Education and Employment (MEDE) holds mainstream initiatives where students are involved to challenge stereotypes in relation to careers within various sectors, such as: promoting engineering and ICT with females and health and social care careers among males. The latter initiatives help to indirectly address the phenomenon of gender pay gap.

The National School Support Services within MEDE collaborates with the Business Professional Women (BPW) to hold an annual event promoting woman emancipation (approximately towards 8 March on Women's Day) among Year 10 and Year 11 students. Boys are also invited for this event.

Servizz Ghozza provides a support service and an educational programme to unmarried pregnant minors with the intention of leading them to adopt a positive attitude towards motherhood while empowering them to pursue their career paths.

Support Services in schools like the services of the teacher of the visually impaired, hearing impaired, early intervention, autism spectrum support team (ASST), home tuition services, learning support educators support and head of department inclusion.

Scheme 9: provision of uniform, school lunches, stationery, photocopies, payment for extra-curricular activities and internet connection.

⁹ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

Provision of diverse courses and training opportunities for educators, support practitioners, educational specialists and educational leaders.

At post-compulsory education level:

At the Malta College of Arts, Science and Technology (MCAST), continuous professional development (CPD) sessions on discrimination and racism are held for MCAST staff. Activities celebrating diversity are held to promote affirmative action. Close collaboration with secondary schools to support migrants students in their journey to post-secondary education. Collaboration with feeder schools is maintained to ensure smooth transition from compulsory to post compulsory education of students particularly vulnerable ones. The services of an education psychologist are provided to make sure that students benefit from services available during their educational journey at MCAST. MCAST's curriculum is regularly revised to answer to the needs of learners and industry, at the same time provide space for a variety of learning styles.

Furthermore, the Agenzija Zghazagh Youth Hub at MCAST and Kunsill Studenti MCAST (KSM) organise activities particularly targeting issues related to gender equality and the empowerment of girls and women in and through education.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☐ No ☐

Please provide reference to the relevant laws and provisions:

MT reply:

In Malta, marriage cannot take place between persons under the age of 16 and if between 16-18, there has to be parental authorisation for such marriage, or of the Court for Voluntary Jurisdiction.

<https://legislation.mt/eli/cap/255/eng/pdf>

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation¹⁰. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

¹⁰

Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

MT reply:

In Malta, there is free childcare for parents who are in employment or engaged in education. (for children from 12 weeks to 3 years of age). Following early childcare, children move into kindergarten which is provided for children aged two years nine months to five years. Although it is not mandatory, parents are encouraged to send their children to such centres.

Government is committed in promoting a view of early childhood as an important phase of life in its own right and not just a preparation for adult life. Early childhood education and care (ECEC) is of central importance to Maltese society and a key responsibility for the government.

Childcare provision blends the care and educational aspects in order to stimulate and enhance the children's emotional, social and educational development. This service also aims to facilitate work and family balance and contribute towards the promotion of social cohesion. The importance being attached to this area is further evidenced by the fact that as from April 2014 the Government has introduced free childcare provision to all parents who are either in employment or education. This measure underscores government's belief in ECEC contribution to child development and socio-economic integration.

☐ Pre-primary education is free of charge for all: Please provide the duration:

MT reply:

Refugees, people with subsidiary and temporary humanitarian protection, asylum and failed asylum seekers together with third country nationals with a residence permit as family member of exempt persons, long-term residence holders, EU residence holders and single work permit holders are exempted from fees.

Kindergarten education is available in both the state and the non-state (Church and Independent) sectors.

Access to early childhood education and care (ECEC) for children aged between 3 months and 3 years, is promoted through the Free Childcare Scheme. The scheme offered as an active labour market policy provides free childcare service to parents/guardians who are in employment or who are pursuing their education. This measure strives to provide a better work-life balance for families with young children. It also seeks to close the gender gap in employment and assists families to gain more income therefore, encouraging more women to enter in gainful employment. This is terminated once the child is eligible to enrol into Kindergarten 1 which is also provided by the state.

Access to ECEC for vulnerable backgrounds are facilitated in a number of ways.

Children coming from disadvantaged backgrounds, whose parents are not eligible for the Free Childcare Scheme are provided access through childcare centres, administered by the State, through the Foundation for Educational Services. In these state-administered childcare centres, free childcare is available for children coming from families where the household's income is lower than EUR 10 000/year.

The Foundation for Educational Services (FES) has an informal agreement with FSWS whereby families that fall under such category are given free childcare services (even though

they are not in employment). Cases are chosen by a board within FSWS. An internal board within FES then approves requests put forward.

The scheme is also being extended to parents who are not in employment or education due to severe illnesses, working on a more holistic day and night childcare service for parents who follow unconventional working schedules as well as improving the scheme to cater for a child's absence over and above the allotted 25% absence entitlement due to hospitalization.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

MT reply:

Pre-primary is not compulsory and there is no legal obligation on the State to provide such services. Article 43(3) of Cap 327 states however that the State may provide for schools for pre-compulsory age, which de facto happens. In fact, in the laws Malta, there are multiple instances where reference to early childhood education is mentioned.

The Directorate for Quality and Standards in Education (DQSE) within the Ministry for Education and Employment (MEDE) is embarking on a broad process to revise the National Standards for Child Day Care Facilities (2006). This process includes an extensive consultation with various stakeholders and experts in the field and which will be followed by the publication of the newly-revised national standards (0-3).

These newly revised standards are informed by the principles of the National Curriculum Framework for All (2012) as well as national policies and international research that incorporate the key elements of best practices in ECEC, including the Proposal for key principles of a Quality Framework for Early Childhood Education and Care under the auspices of the European Commission (DG Education and Culture, European Commission, 2014).

The Directorate for Quality and Standards in Education is responsible to monitor effective implementation and regulate these services through an external review visit followed by a written report grounded in the established quality standards. This process aims to help service providers to reflect, focus and manage the centre's internal review exercise, and guides them to meet the expected standards.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

MT reply:

Education in Malta is compulsory for all. Compulsory age is defined in article 2 of cap 327 as:

"compulsory school age" means any age from five years to fifteen years, both inclusive, and accordingly a person shall be deemed to be of compulsory school age if he has attained the age of five years and has not attained the age of sixteen years or has not yet completed the last year of secondary school;"

Compulsory education covers six years of primary education followed by five years of secondary education. It is offered full-time and free in all state schools, but parents can opt to educate their children in Church or Independent schools. Education in Church schools is also free, following an agreement between the State and the Holy See, where the State pays for all educational grades in Church schools and assists in other financial ways as well. Parents of children attending schools in the Independent sector enjoy a number of tax-relief measures.

All schools are obliged by law to follow the tenets of the National Curriculum Framework (2012) and to abide by all the regulations as listed in the Education Act. At the end of compulsory education students can further their education and training in higher and post-secondary and tertiary educational institutions.

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

MT reply:

Education Act.

Third country nationals (TCNs) with a residence permit for 'study' purposes and TCNs residing in Malta under tax incentive schemes pay for tuition fees, but rates are very low.

Children have access to free, quality, public education. Malta would like to point out that "access to education" is not tantamount to 'entitlement for free education in a state learning institution.' 'Access to education' only ensures the freedom of registering in a learning institution whether state or private and whether free or against payment.

Children begin compulsory school in the last week of September in the calendar year when they are five years of age. In state schools, there is the provision of free textbooks.

Free school transport is provided to all students attending state, church and independent schools.

Parents sending their children to church schools do not pay tuition fees.

One can refer to the Education Act.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

MT reply:

N/A

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

MT reply:

Third country nationals (TCNs) with a residence permit for 'study' purposes and TCNs residing in Malta under tax incentive schemes pay for tuition fees, but rates are very low.

After completing their primary education, students proceed to secondary education at eleven years of age. In Malta, secondary education is a five-year cycle and lasts till grade 11, this being the end of compulsory schooling.

As from school year 2013/2014, the secondary cycle in state schools consists of two separate phases: an initial two-year period in a Middle School followed by a three-year period in a Secondary School.

Students have access to free, quality, public education. Malta would like to point out that "access to education" is not tantamount to 'entitlement for free education in a state learning institution.' 'Access to education' only ensures the freedom of registering in a learning institution whether state or private and whether free or against payment.

Furthermore, students' maintenance grants are provided by the Government of Malta for students in higher education. The students' maintenance grants' scheme operates under a set of regulations and the respective Legal Notice determining eligibility.

☐ No: What are the measures your government intends to take to ensure free secondary education?

MT reply:

N/A

- Is secondary education (middle/high) compulsory in your country?

☒ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

MT reply:

Exemption of fees is granted depending on the status of the student as issued in the residence permit of the third country national in Malta.

After completing their primary education, students proceed to secondary education at eleven years of age. In Malta, secondary education is a five-year cycle and lasts till grade 11, this being the end of compulsory schooling.

As from school year 2013/2014, the secondary cycle in state schools consists of two separate phases: an initial two-year period in a Middle School followed by a three-year period in a Secondary School.

Post-secondary General Education (ISCED Level 3)

Post-secondary education is co-educational. Students can follow a programme of their choice after they have completed compulsory education and are 16 years of age and older. State general post-secondary education is provided at the GEM 16+ School (an educational learning programme giving students a second-chance at obtaining their secondary education certificate (SEC) qualifications), the G. Curmi Higher Secondary School, the Sir M. Refalo Sixth Form, Gozo (that offer academic courses aimed at achieving advanced or intermediate levels of the MATSEC [Matriculation and Secondary Education Certificate] examinations as well as revision courses at SEC level) and the Junior College (where students follow a two-year course that prepares them for the Matriculation Certificate and which conforms to the University of Malta's admission requirements).

Post-secondary Vocational Education and Training

The two institutions offering post-secondary vocational education and training are the Malta College of Arts, Science and Technology (MCAST) and the Institute of Tourism Studies (ITS). Both institutions offer a wide range of full-time courses such as Foundation, Certificate and Diploma courses leading to Higher National Diploma level, Bachelor's Degree and Master's Degree level. An extensive range of evening part-time courses are available to allow interested participants to further their studies in vocational areas even if already in employment. Currently both institutions also offer students the possibility to enrol in apprenticeship schemes.

At further and higher education level, MCAST provides training programmes free of charge to all EU citizens. Third country nationals are guided to apply at the Ministry for Education and Employment (MEDE) requesting to be granted exemption from fees of post compulsory education.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

MT reply:

As per Chapter 327 of the Laws of Malta - The Education Act schooling is compulsory in Malta until the completion of one's sixteenth year and entry into employment is in accordance to end of compulsory education.

Also Cap 327 makes employment of a minor an offence as per article 128.

By means of **Chapter 594 - Employment and Training Services Act**, no person shall employ a minor of compulsory school age except where the Minister responsible for Education grants written permission to employ such minor in terms of the Education Act or under any Training Scheme approved by the Minister responsible for Education in terms of the Education Act or as provided for in any other Law. Provided also that the employer shall be bound to ensure that the conditions, if any, laid down in the mentioned written permission or training scheme, are complied with.

The regulations set out by **Subsidiary Legislation 452.92 - Young Persons (Employment) Regulations**, seek to protect young workers in employment. Young Persons include children (minors) still of compulsory school age (have not finished compulsory schooling or are below the age of sixteen years) and those between the compulsory school age and under eighteen years, known as adolescents. Protection is higher where it concerns children in employment.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3¹¹, and target 4.4¹².

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹³ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

¹¹ Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

¹² Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

¹³ See: Article/Paragraph 1(1).

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training
- ☐ Other:

MT reply:

Education Act:

At further and higher education level, the law binds the Malta College of Arts, Science and Technology (MCAST) with the duty to provide quality education to all learners irrespective of their age, gender, sex, ability, economic status, nationality, ethnicity, religion or faith, disability and/or political affiliations.

It also binds MCAST to ensure the implementation of the principles of inclusive education by providing an equitable access to all persons in full respect of any diversity.

The Institute of Tourism Studies (ITS) invests in education to prevent acts of intolerance and discrimination. ITS demonstrates respect for diversity, maintain fairness and promotes equality irrespective of gender, race, ethnicity, culture, religion, sexual orientation, appearance, age, language or different needs or abilities.

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

MT reply:

Further to information above;

At the Institute of Tourism Studies (ITS), all application forms will be processed through the ITS registrar office. The ITS registrar office shall admit an applicant once all required documentation is received and any applicable fees paid as approved by the ITS admissions board. ITS entry criteria are established per ITS' programme and found on the ITS website (<https://its.edu.mt/>) under ITS' prospectus. ITS does not discriminate on the basis of race, nationality, age sex, ethnicity, gender and disability.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

- ☒ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Other:

MT reply:

Higher education is accessible for all but third country and Maltese nationals are exempted from all fees if they are in financial difficulties where a local fee is required.

Malta is facilitating continuing education and access to higher education. In this regard various initiatives have been launched varying from the offering of scholarships to financial incentives.

At further and higher education level, MCAST provides training programmes free of charge to all EU citizens. Third country nationals are guided to apply at the Ministry for Education and Employment (MEDE) requesting to be granted exemption from fees of post compulsory education.

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

MT reply:

Higher education in state institutions is generally free of charge. Third country nationals (TCNs) are exempted from international fees depending on their residence status.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☐ Provision of education for persons who have not received or completed the whole period of their primary education

- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications

☐ Other:

- Please elaborate further on the measures taken:

MT reply:

Where applicable third country nationals (TCNs) are exempted from fees.

Literacy programmes:

The Reading Recovery programme developed by the National Literacy Agency is a literacy programme aimed at increasing literacy amongst the most vulnerable students. Syllabi have been revised to make them more relevant to the students. Several new vocational and applied subjects have been introduced so as to encourage students to enjoy learning and to further their educational experience. The Reading Recovery programme which is an accredited school-based literacy programme for the lowest achieving children aged five to six. In the scholastic year 2018-2019, University College London, working with the National Literacy Agency, started training educators from the College Literacy Teams as Reading Recovery teachers and Reading Recovery teacher leaders in Malta.

Measures to ensure an educated and skilled population:

Malta aims at supporting the educational achievement of children at-risk-of-poverty and from low socio-economic status, facilitating focused action that supports students to make the best out of their school years, from early childhood to the end of compulsory school and beyond.

The GEM16+ education programme was set up for students who leave compulsory schooling without formal (MATSEC) qualifications giving them a second opportunity of succeeding in an academic route.

The Alternative Learning Programme (ALP) provides students with an alternative opportunity through vocational subjects, enrich them with relevant and competent skills, thus preparing them to step in higher vocational education with practical and theoretical knowledge. One of Malta's aims is to raise levels of student retainment and attainment in further, vocational, and tertiary education and training.

At further and higher education level:

The progression system across the European Qualifications Framework (EQF) levels at MCAST gives the opportunity to learners to access different entry and exit points according to their qualifications and experience. This flexibility makes learning more accessible. Services of child care facilities are also provided by the College to encourage mothers to enrol on one of the 230 learning programmes. The college recently introduces a number of

Masters programmes including one in Vocational Teaching and learning. Learning Support Services as well as professional interventions all contribute to the students' successful completion of their training. The integration of transferable/portable skills in the curriculum facilitates the transition from College training to the world of work.

Measures related to lifelong learning:

The Directorate for Research, Lifelong Learning and Employability within the Ministry for Education and Employment embraces learning as a lifelong journey in which skills are acquired through a holistic approach. Besides offering guidance on lifelong learning, the directorate organises adult learning courses which are facilitated through personalised and innovative approaches to education. This adult learning programme includes essential skills courses, academic courses and vocational courses which lead to the acquisition of work skills, active citizenship and personal development. Moreover, the directorate runs Visual and Performing Arts schools which provide training in art, dance, drama and music within a curriculum which promotes a creative and appreciative perception of self, others and life as a whole. The School of Music, the School of Drama and the School of Art are in Malta while the School for Visual and Performing Arts is in Gozo.

Measures taken at public employment service level:

Malta's Public Employment Service, Jobsplus, offers a number of courses aimed at helping individuals acquire transversal or specific skills which are labour market oriented. Moreover, Jobsplus has introduced a number of training schemes and other measures to facilitate occupational mobility. Different types of courses are available, varying from short courses to vocational courses pegged to the Maltese and European Qualification Frameworks.

Jobsplus offers courses to registering unemployed, persons who are neither in employment, education or training and employed persons alike. Trainees must be at least 16 years of age or have completed compulsory schooling.

The entry requirements for Jobsplus' courses are kept very low. This is mainly attributed to the fact that Jobsplus, besides being a licensed Further Educational Institute, is also Malta's PES. Consequently, it is within its mandate to assist jobseekers or job changers in finding employment. The entry requirements to follow a course vary.

For a number of courses Jobsplus also offers pre-course assessments. The scope of these pre-assessments is to facilitate the participation in lifelong learning especially for early school leavers or persons who would like to return to the labour market.

Most of Jobsplus' training programmes are accredited and pegged between levels 1 to 4 of the Malta Qualifications Framework. Jobsplus' courses are offered free of charge to all its Trainees irrespective whether one is seeking employment or is already in employment. Throughout the course, Trainees will be required to sit for a formal assessment that can take the form of a written exam, a practical exam or to deliver a presentation. The type of assessment will depend on the respective course.

Recently, following the outbreak of the Covid-19 pandemic, Jobsplus started offering its courses online, through live sessions with trainers. Only those courses that do not require the physical presence of trainees are being offered online. Learners who cannot offer a course online will still have the opportunity to follow a course at Jobsplus' premises.

Additionally, all Jobsplus training initiatives are made available to migrants and the latter are given the same services that are offered to locals and/or EU nationals. Consequently, migrants have the same opportunities to avail from provided that they submit supporting

documentation with their application and subject that the eligibility criteria to participate in such initiatives are fulfilled.

The *Investing in Skills Scheme* seeks to promote the up-skilling of persons who are already active within the Maltese labour market. The aim of this scheme is to encourage local employers to up-skill their workforce by actively participating in training programmes and courses through financial incentives. As of the 4th June 2018, NGOs and Social Partners are eligible to apply for the Investing in Skills irrespective if these conduct and economic activity or not. Nonetheless, in all instances, training must be delivered to the direct employees of the applicant entity in order to be eligible.

Another initiative is the *Work Exposure Scheme* which is intended to facilitate the transition into employment by providing jobseekers initial hands on training that helps them obtain the knowledge, skills and competences required to find and retain employment. Participants are paid a training allowance, payable by Jobsplus for every hour attended, which is calculated on the national minimum wage.

Another initiative is the *Traineeship Scheme* that equips jobseekers with initial vocational training (pre-employment training) to help obtain knowledge, skills and competences required to find and retain employment. The Traineeship Scheme offers a combination of off-the-job (course offered by Jobsplus) and on-the-job (placement with an employer) training. Participants are paid a training allowance, payable by Jobsplus for every hour attended, which is calculated on the national minimum wage.

The *Work Placement Scheme* seeks to provide hands-on training to participants following a course offered by Jobsplus, which includes a practical component training. Namely: Vocational Education and Training Award in Child Care (0-3years); Vocational Education and Training Award for Care Workers for Persons with Disability; and Vocational Education and Training Award for Care Workers for the Elderly. The on-the-job training takes place at the employer's premises with whom the trainee is placed. The classroom training programmes are recognised by the National Commission for Further and Higher Education (NCFHE) and pegged at respective levels with the Malta Qualifications Framework (MQF). Participants are paid a training allowance, payable by Jobsplus for every hour attended, which is calculated on the national minimum wage.

The *Training Pays Scheme* aims to increase the number of adults participating in lifelong learning. Persons will be refunded 75 per cent of the training costs (excluding VAT) incurred (up to a maximum of €1,000), when attending a training programme with the intent of improving their level of competence or acquiring new skills. The training programme chosen by an applicant cannot be offered by Jobsplus. Moreover, both the training programme and the training provider need to be accredited and licensed by the National Commission for Further and Higher Education (NCFHE). Only courses that lead up to MQF level 5 will be eligible for funding. These measures help strengthen the labour supply by increasing the versatility in skills and knowledge of the local workforce.

Through the Youth Guarantee, young people who are at risk of social exclusion and or at risk of becoming long-term unemployed can benefit from initiatives specifically targeted at youth. Amongst such initiatives there are the Secondary Education Certificate (SEC) revision classes and the ICT Course.

SEC Revision Classes: SEC revision classes aim to encourage young people to re-enter education and training after failing school exams. Revision classes are provided in core subjects which include Maltese, English, Mathematics Physics and Biology. Participants can apply for up to three subjects. These classes are provided free of charge during the summer period and last for five weeks. At the end of the classes, participants sit for an exam.

Successful participants gain the “missed” qualification (EQF 2 or 3) and are encouraged to continue with their studies.

ICT Courses: The ICT Courses aim to help participants improve their ICT skills. Participants are obliged to attend a minimum of 80% of the course and upon successful completion they gain a qualification and receive an allowance. In addition to the educational opportunity to acquire new and valuable ICT skills and knowledge, throughout the programme, participants are assisted by an LSA II and on-going mentoring by the ICT Courses coordinator.

Additionally, Jobsplus in partnership with the Lino Spiteri Foundation, assist persons with disability and vulnerable individuals through the ESF.02.048 VASTE Programme.

The aim of this €13 million project is to provide a holistic assessment to participants through multiple training options and professional support which might lead to several employment opportunities. Training opportunities include: pre-employment training (PET) and sheltered employment training (SET).

The *Pre-Employment training* assists disadvantaged jobseekers including persons with disability to acquire pre-employment skills in order to adapt to labour market changes and requirements. Currently there are three (3) accredited courses offered; Award in Pre-Employment Skills, Award in Basic Clerical and Award in Life and Communication Skills. Another course offered is Basic ICT.

The *Sheltered Employment Training (SET)* is a one-year programme aimed at preparing individuals with mental, physical and/or intellectual disabilities for employment. The job coaches assist the clients through hands-on work-related training and other training to enhance their soft skills including their work ethics, independent living, communication and social skills.

Through this programme, Persons with Disability and Vulnerable Jobseekers may also benefit from;

- Occupational Therapy
- Professional Support
- Job Carving
- Job Coaching
- Mentoring

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)

- ☐ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

MT reply:

The National Commission for Further and Higher Education (NCFHE) sets the minimum norms for private further and higher education institutions such as minimum quality assurance standards that all education institutions must fulfil which are very much based on the European Standard Guidelines for Quality Assurance. Furthermore, the NCFHE issues further communications and guidelines on several related mechanisms such as digital education, issuing of certificates and others.

At the Institute of Tourism Studies (ITS), different ITS functional departments are charged with different responsibilities including the ITS registrar and the ITS student support services as much as the ITS quality assurance unit and ITS student cases board and ITS disciplinary board.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

MT reply:

The sectoral agreement signed by the Maltese Government and Malta Union Teachers signed in December 2017 includes an increase in class allowances and the introduction of other new allowances, accelerated progression, reduction in teaching load and student

population in class. It widened the concept of continuous professional development (CPD) to include all types of learning opportunities. The sectoral agreement also provides for up to 40 hours of CPD sessions for each teacher every scholastic year during working hours.

Initial teacher education has been extended from Bachelor's degree to Master's level to provide higher teaching quality.

The Institute for Education offers over sixty accredited stand-alone courses and short programmes to support the continuous professional development of educators. The Institute for Education also developed and launched several Bachelor and Master of Education programmes adopting a blended-learning approach. In addition to these programmes, the Institute for Education also developed and launched a Master in Applied Educational Leadership designed to support the development of individuals currently or aspiring to take on a leadership role within the education sector.

The Faculty of Education (www.um.edu.mt/educ) within the University of Malta has developed a series of courses, both at undergraduate and post-graduate level, including initial teacher education. In 2013 the Faculty embarked on an important reform that led to the introduction of the Master degree in Teaching & Learning (MTL).

At the Institute of Tourism Studies (ITS), ITS provides continuous professional development to its staff on programme content, development of new programmes, instructional techniques, special student needs, development of new services and general professional development. ITS lecturers are also provided with resources and facilities to support learning and teaching and appropriate use of educational technologies.

Furthermore, when education institutions submit an application to become a licensed provider by the National Commission for Further and Higher Education (NCFHE), the NCFHE accreditation unit goes through the teachers' CVs and ensures that the education institution employ suitable lecturers.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☐ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹⁴ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned) **Dear IfE, NCFHE, UM, kindly provide feedback to the below questions:**

☒ Curriculum includes human rights education

☒ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

MT reply:

Malta has a regulatory framework relating to the establishment and functioning of private educational institutions for those of compulsory school age; and further and higher education.

Furthermore, private further and higher education institutions fall under the National Commission for Further and Higher Education (NCFHE)'s remit as per subsidiary legislation 327.432. Further and higher education institutions have to abide by NCFHE's accreditation procedures which are very much based on this subsidiary legislation. Furthermore, they also have to have an internal quality assurance system based on the quality assurance standards as per the European Standards and Guidelines (ESG). All licensed private further and higher education institutions have to sit for an external quality audit every five years to ensure that what was listed in the license documentation and the education they're providing is up to standard and fit for purpose. From time to time, the NCFHE issues communications and guidelines such as guidelines on digital education that the education institutions have to abide by.

¹⁴

Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹⁵ explicitly apply to private educational institutions?

Yes ☐ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

MT reply:

Discrimination in Malta goes against Malta's supreme law that is the Constitution; thus no discrimination is allowed anywhere.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs
- ☒ Other:

MT reply:

The board of exemption of fees in state educational institutions within the Ministry for Education and Employment (MEDE) works in close collaboration with the Migrant Learners' Unit within the Ministry for Education and Employment (MEDE).

The Migrant Learners Unit within MEDE has been tasked to set up and run the induction programme at both primary and secondary level in collaboration with various stakeholders, including Directorate for Learning Assessment Programmes (DLAP) within MEDE curricular experts, recruitment and training providers. Furthermore the Migrant Learners Unit within MEDE has recruited a number of community liaison workers within the Language Learning and Parental Support for Integration (LLAPSI+) EU co-funded project who are themselves third country nationals and act as a bridge between the school and the family thus ensuring both a more effective uptake and achievement for migrant learners.

The Migrant Learners Unit within MEDE also has a social worker who has a background of migration who also works with families and institutions to support the learners identified by schools who may need further support.

- Please provide a brief description of the provisions:

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

MT reply:

The Migrant Learners Unit within the Ministry for Education and Employment (MEDE) has established sound links with the Mariam al Batool school and has worked with the school.

The board of exemption of fees in state educational institutions within MEDE successfully processed and completed the transition of primary school students at the Mariam al Batool school to Government middle / secondary schools when the secondary section of the mentioned school closed down.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁶ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁷ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

MT reply:

The Education Act;

The Framework for the Education Strategy for Malta (2014);

¹⁶ Articles/Paragraphs 1 and 3.

¹⁷ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

The Respect for All Framework;

Policy of the board of exemption of fees in state educational institutions (revised 2017).

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☒ Provision of language courses
- ☒ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☒ Non-formal and/or alternative education programmes
- ☒ Financial support
- ☐ Other innovative measures:

MT reply:

Through the board of exemption of fees in state educational institutions, the Ministry for Education and Employment (MEDE) provides free education to state school students at compulsory, post secondary and higher levels to non EU students who qualify for such waiver of fees under its policy based on international and local legislation and policy regarding migrants. Exemption of fees is also granted to Maltese students following courses against payment and who may not be able to manage because of financial difficulties.

Furthermore, with regard to financial support, MEDE implements Scheme 9, which is a ministerial line vote, to ameliorate the life of state school students coming from low socio-economic backgrounds with a view to addressing basic educational needs and resources to ensure access to quality education experience. The beneficiaries of this measure are learners from 3 years up to 16 years living with families that are in or on the verge of poverty. One of the benefits under this Scheme is the provision of daily lunch during the scholastic year at school. Adding to this, MEDE provides free healthy breakfast to students attending the breakfast club, free healthy lunches to students on scheme 9 and free healthy lunches to students attending Resource Centres.

Additionally, refugees can also sit for validation assessment in sectors where the validation of non-formal and informal learning is available. In fact, since 2016 many refugees and migrants have obtained a certificate through the validation of non-formal and informal learning in the building and construction sector as per S.L 327.433.

Please briefly elaborate further on the measures taken:

MT reply:

At compulsory education level:

The Migrant Learners Unit within the Ministry for Education and Employment (MEDE) works on:

- the registration of third country nationals for state schooling in Malta;

- the provision of induction programme to migrants who do not yet communicate in basic Maltese and English and without which language knowledge such learners would not be able to access mainstream curriculum and benefit from it;
- recruitment of staff, procurement and policy implementation;
- training and management of cohorts working within the Migrant Learners Unit within MEDE including but not limited to: the community liaison team, the psycho-social team, the administrative group;
- coordination between schools and colleges for the benefit of the learners and their families;
- supporting families to access information and opportunities already present in the educational sector;
- setting up and running of initiatives such as the Language to Go Summer Intensive language course for migrant learners in compulsory schooling.

At post-compulsory education level:

The Malta College of Arts, Science and Technology (MCAST) provides Maltese as a Foreign Language as part of the structures where Maltese is one of the core subjects (at Malta Qualifications Framework level 1 to level 3 programmes). Where not part of the structure, Maltese as a Foreign Language can be taken by students on a voluntary basis. This subject is accredited at the level taken. Additional support in English/Maltese is provided upon request through the MCAST Learning Support Unit (LSU). Other languages including Italian, French, German and Spanish as foreign languages are offered on a voluntary basis.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☒ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

MT reply:

Migration in itself impacts families and individuals differently. Migrant learners need time to settle down and settle in their new realities. Having a different language to the language of schooling impacts learners drastically not only on the academic level but also socially and psychologically. Other factors such as socio-economical or cultural factors also impact the family.

In this regard, Malta believes that breaking down cultural barriers, building a society on inclusion that values diversity, sets us in considering the other person as equally valuable, thus, putting us in a background of an ongoing learning process that provides the possibility of mutual understanding and the need for mutual recognition of cultural identities. To this effect, Malta continuously evaluates and monitors the needs of learners to ensure that the education system promotes a culture of dialogue and democratic values, creating a space for community building at the national level, through a number of best practices.

Malta has undertaken numerous measures in connection with the implementation of Malta's Migrant Integration Strategy and Action Plan - Vision 2020 "INTEGRATION = BELONGING":

- The Ministry for Education and Employment (MEDE) set up a One Stop Shop within MEDE. The One Stop Shop provides dedicated services and a focal point for Migrants services on Education and Employment.
- Personal, Social, Career Development (PSCD) continues to be given paramount importance in the Maltese educational system, that promotes a human rights culture. Students develop skills and attitudes necessary for a complete integration of human rights. PSCD educators offer holistic learning that promotes the development of students' intellectual, emotional, social, physical, artistic and creative potentials. PSCD also touches upon values clarification where students are given opportunities to identify, clarify and express their own beliefs and values and to confront them with others in a safe framework based on the dignity of every human being, freedom of thought and expression, and the respect for others' opinions.
- With regard to compulsory education, the setting up of the Migrant Learners' Unit within MEDE has strengthened the provision for inclusive support for children from a migrant background. The programme enacted focuses on the learning of Maltese and English which are the languages of schooling in Malta. Other academic subjects are taught adopting a Content and Language Integrated Learning (CLIL) approach. This programme focuses on each learner's well-being offering a holistic educational experience while focusing on the acquisition of linguistic and socio cultural competences. The programme is offered in 28 schools in Malta and Gozo. A newly introduced induction provision for secondary aged learners is running as of the start of this scholastic year
- Also with regard to compulsory education, since 2011, the Ministry for Education and Employment has been involved in the Language Learning and Parental Support for Integration (LLAPSI and LLAPSI+) Projects, a series of EU-funded projects mainly through the Integration Fund (IF), the European Refugee Fund (ERF) and currently the Asylum and Migration Integration Fund (AMIF). Most of the projects focused on the upskilling of teachers, procurement of teaching materials and the development of learning and assessment tools.
- The current LLAPSI+ project also includes the recruitment of a team of Community Liaison Staff with the main objective of school outreach to support parents and guardians whose children are in schooling. This initiative contributes to consolidating the home-school links and works towards building a more cohesive society even within the school communities. The Migrant Learners' Unit within MEDE also has the services of a social worker and a counsellor who work in the different schools and hubs.
- Through the LLAPSI+ project, the Migrant Learners Unit has also offered a summer intensive language course – the Language 2 Go! – with the aim of supporting newly arrived learners who are still struggling with learning the languages of schooling. The courses have been offered annually in four different sites in both Malta and Gozo.
- Apart from substantial language training components, the current LLAPSI+ project includes components such as 'Making Friends-Bringing Friends Clubs', an afterschool creative club with the aim of providing an opportunity for newcomer learners to work together and strengthen the relationship between different cohorts including EU nationals and the hosting community.
- From the side of the Malta College of Arts, Science and Technology (MCAST), there was the setting up of the Integration Unit at MCAST within the Students' Outreach Department. In recent years, the number of international students has constantly

increased and thus the Integration Unit will seek to co-ordinate and streamline new and existing activities related to integration of students, such as Diversity days.

- To assist the Integration Strategy, MCAST has and will continue to deliver language courses to migrants in both Maltese and English through its Learning Support Unit and its thematic institutes. Moreover, there is the provision of lectures at MCAST for the “I Belong Programme” in collaboration with the Human Rights directorate.
- Also from the side of MCAST, there were structured meetings with international students; participation in continuous professional development (CPD) sessions for staff members, together with one-to-one meetings with individual students.
- The Department of Inclusion and Access to Learning of the University of Malta has been commissioned to design, deliver and oversee the implementation of an important part of the migrant integration process. The Directorate for Human Rights and Integration within the Ministry for European Affairs and Equality has commissioned the department to provide the Stage 2 integration courses in Maltese (MQF 2) and Cultural Orientation. Stage 2 courses inter alia fulfil the integration requirements laid down in law for long-term residence applicants. The same agreement includes for the first time prior training in adult education for integration, for the educators who will be delivering the Stage 2 courses.
- As part of the University of Malta’s internationalisation programme, the University of Malta is seeking to attract a number of non-EU/EEA nationals to read for Masters and Ph.D. programmes in different areas of study, to strengthen the research and innovation dimensions of the University of Malta. The University of Malta continues to develop new postgraduate courses in diverse areas of study, a number of which are launched each year.
- Within the Ministry for Tourism (MOT), the Institute for Tourism Studies (ITS) is also supporting the Integration Strategy on the ground. ITS enrolls numerous foreign students and the Institute makes it a priority to make them feel welcome by encouraging also other national students to help them and make them feel that they belong at the Institute.
- The Directorate for Research, Lifelong Learning and Employability within the Ministry for Education and Employment pursues a policy of inclusivity. Lifelong learning courses are open to both Maltese and non-Maltese nationals. The Directorate has developed courses in Maltese-as-a-foreign-language (MFL) and English-as-a-foreign-language (EFL). At enrolment stage, asylum seekers and beneficiaries of international protection are given the same rights as Maltese and EU citizens. Courses in English-as-a-foreign-language (EFL) and Maltese-as-a-foreign-language (MFL) offered by the Directorate for Research, Lifelong Learning and Employability within the Ministry for Education and Employment are accredited and lead to the awarding of a General Education Award at Malta Qualifications Framework (MQF) levels 1 and 2.
- The Institute for Education’s initial teacher training courses include modules on the subject to ensure that the new teaching workforce is capable of creating the inclusive environment conducive to learning required by all learners. It also offers accredited short courses on multiculturalism in education, how to include international learners in the learning experience classroom and courses that empower senior management teams in schools to create a multicultural environment.

☒ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

MT reply:

Schools as well as entities such as the Institute for Education and the Migrant Learners' Unit (MLU) within the Ministry for Education and Employment (MEDE) are undertaking significant steps to provide high level continuous professional development (CPD) to improve the level of preparedness of the educational staff to ensure that the education system promotes a culture of dialogue and democratic values, creating a space for community building at the national level.

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

MT reply:

The recruitment of a community liaison team has really been an effective initiative which has given the Migrant Learners Unit within the Ministry for Education and Employment (MEDE) great insights and facilitated the link with the families and the school.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☒ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

MT reply:

The principles advocated by the 1960 Convention and Recommendation against discrimination in education are promoted through Malta's Policy on Inclusive Education in Schools - Route to Quality Inclusion (2019).